

§ 1036. Service of summons. (a) Except as provided for in subdivision (c) of this section, in cases involving abuse, the petition and summons shall be served within two court days after their issuance. If they cannot be served within that time, such fact shall be reported to the court with the reasons thereof within three court days after their issuance and the court shall thereafter issue a warrant in accordance with the provisions of section one thousand thirty-seven. The court shall also, unless dispensed with for good cause shown, direct that the child be brought before the court. Issuance of a warrant shall not be required where process is sent without the state as provided for in subdivision (c) of this section.

(b) Service of a summons and petition shall be made by delivery of a true copy thereof to the person summoned at least twenty-four hours before the time stated therein for appearance.

(c) In cases involving either abuse or neglect, the court may send process without the state in the same manner and with the same effect as process sent within the state in the exercise of personal jurisdiction over any person subject to the jurisdiction of the court under section three hundred one or three hundred two of the civil practice law and rules, notwithstanding that such person is not a resident or domiciliary of the state, where the allegedly abused or neglected child resides or is domiciled within the state and the alleged abuse or neglect occurred within the state. In cases involving abuse where service of a petition and summons upon a non-resident or non-domiciliary respondent is required, such service shall be made within ten days after its issuance. If service can not be effected in ten days, an extension of the period to effect service may be granted by the court for good cause shown upon application of any party or the child's attorney. Where service is effected on an out of state respondent and the respondent defaults by failing to appear to answer the petition, the court may on its own motion, or upon application of any party or the child's attorney proceed to a fact finding hearing thereon.

(d) If after reasonable effort, personal service is not made, the court may at any stage in the proceedings make an order providing for substituted service in the manner provided for substituted service in civil process in courts of record.

